

HOUSE No. 1059

The Commonwealth of Massachusetts

PRESENTED BY:

Jeffrey Rosario Turco

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to fisheries conservation gear grant program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeffrey Rosario Turco</i>	<i>19th Suffolk</i>	<i>1/16/2025</i>

HOUSE No. 1059

By Representative Turco of Winthrop, a petition (accompanied by bill, House, No. 1059) of Jeffrey Rosario Turco that the Division of Marine Fisheries establish a program for commercial fishing gear. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to fisheries conservation gear grant program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. There is hereby established, subject to appropriation, a Fisheries
2 Conservation Gear Grant Program, the purpose of which shall be to provide funding assistance
3 for the research, development, and acquisition of commercial fishing gear which limits or
4 eliminates the mortality of juvenile or other fish not legally harvestable, or harm or mortality to
5 protected species such as the Northern Right Whale, while maximizing the sustainability and
6 productivity of an affected fishery. The program shall be developed and administered by the
7 Division of Marine Fisheries, which shall conduct regular hearings at intervals of not less than
8 once per year, to determine the size, type and scope of such grants necessary to maximize their
9 effectiveness in achieving the goals set forth in this section. In administering the program, the
10 division shall utilize eligibility criteria which, to the greatest extent possible, ensure equity based
11 on geography, fishery type, gear type, and demographic factors, provided further that grants may
12 be conditioned on matching resources and collaboration between commercial fishery participants
13 and scientific or other institutions which conduct relevant research.

SECTION 2. Eligibility for grants from the program shall be restricted to fishing industry participants domiciled in Massachusetts and holding a valid state or federal commercial fisheries permit, and institutions of higher learning or research organizations located in the commonwealth.

SECTION 3. The division may, on behalf of the commonwealth, retain all or a portion of the ownership of any intellectual property developed through said program, including but not limited to patents, and registrations, provided, however, that any intellectual property so held shall be made available through licensure or other means under reasonable terms and conditions to those otherwise eligible for grant funding pursuant to this act, and for the purposes of this act.